

SERVICE LEVEL AGREEMENT

BETWEEN



**MWALIMU NATIONAL SAVINGS AND CREDIT COOPERATIVE
SOCIETY LIMITED**

AND



TRIMLINE SYSTEMS & SOLUTIONS

1. Agreement Overview

1.1 Parties and Recital

This Agreement represents a Service Level Agreement between:

TrimLine Systems & Solutions, a limited liability company incorporated and operating under the Companies Act in the Republic of Kenya whose principal office and address is

Bihi Towers 9th Floor, Room 5 Moi Avenue
P.O. Box 35351 – 00100, Nairobi, Kenya

Commented [BAK1]: Indicate the address and company registration number

(hereinafter referred to as 'TrimLine Systems & Solutions' which expression shall where the context so admits include its permitted assigns and successors in title) of the one part, and;

Mwalimu National Savings and Credit Cooperative Society Limited, a savings and credit cooperative society limited registered and operating under the Cooperative Societies Act and the Sacco Societies Act in the Republic of Kenya whose principal office is Mwalimu Towers, Hill Lane- Off Mara Road and of P. O. Box 62641- 00200, Nairobi (hereinafter referred to as 'Mwalimu National' which expression shall where the context so admits include its permitted assigns and successors in title) of the other part.

Whereas

- a. Mwalimu National is desirous of hiring a company to provide IT services required to support and sustain ATM bridge and Go Mobile Integration;
- b. TrimLine Systems & Solutions has the necessary expertise and equipment to provide the services desired by Mwalimu National as per the terms contained herein-below.
- c. This Agreement outlines the parameters of all IT services covered as they are mutually understood by the parties and does not supersede current processes and procedures unless explicitly stated herein.

2. Purpose, Goals & Objectives

The **purpose** of this Agreement is to ensure that the proper elements and commitments are in place to provide consistent IT service support and delivery to Mwalimu National by TrimLine Systems & Solutions.

The **goal** of this Agreement is to obtain mutual agreement for IT service provision between the TrimLine Systems & Solutions and Mwalimu National.

The **objectives** of this Agreement are to:

- Provide clear reference to service ownership, accountability, roles and/or responsibilities.
- Present a clear, concise and measurable description of service provision to the Mwalimu National.
- Match perceptions of expected service provision with actual service support & delivery.

3. Timelines

3.1 Term

This Agreement is valid for a period of one year from the effective from 4th September 2019.

3.2.2 Review and Renewal

3.2.1 This Agreement may be renewed for such time and period as shall be mutually agreed upon by the parties.

~~This Agreement shall be reviewed for renewal at least once annually; however, in lieu of a review during any period specified, the current Agreement will remain in effect.~~

b→ 3.2.2 The **Technology Manager** is responsible for facilitating regular reviews of this document. Contents of this document may be amended as required, provided mutual agreement is obtained from the parties and communicated to all affected parties. TrimLine Systems & Solutions will incorporate all subsequent revisions and obtain mutual agreements / approvals as required.

Technology Manager: TrimLine Systems & Solutions Ltd

Review Period: Yearly (12 months)

Effective Date: 4st September 2019

Previous Review Date: N/A

Next Review Date: 4st September 2020

Formatted: Outline numbered + Level: 2 + Numbering
Style: 1, 2, 3, ... + Start at: 2 + Alignment: Left + Aligned at:
0.25" + Indent at: 0.5"

Formatted: Outline numbered + Level: 3 + Numbering
Style: 1, 2, 3, ... + Start at: 1 + Alignment: Left + Aligned at:
0.5" + Indent at: 1"

Formatted: Indent: Left: 0.25", No bullets or numbering

4. Service Agreement

The following detailed service parameters are the responsibility of TrimLine Systems & Solutions in the ongoing support of this Agreement.

4.1. Service Scope

The following Services are covered by this Agreement;

- 4.1.1 Manned telephone support
- 4.1.2 Monitored email support
- 4.1.3 Remote assistance using Remote Desktop and a Virtual Private Network where available
- 4.1.4 Planned or Emergency Onsite assistance (extra costs apply)
- 4.1.5 Monthly system health check

Formatted: No bullets or numbering

4.2. Mwalimu National's Obligations

4.2.1 In supporting this Agreement, Mwalimu National shall;

- ~~a→~~ 4.2.1.1 Ensure prompt payment for all support costs at the agreed interval.
- ~~b→~~ 4.2.1.2 Upon request, ensuring the availability of Mwalimu National representative(s) when resolving a service related incident or request.

Formatted: Indent: Left: 1.25", No bullets or numbering

4.3. TrimLine Systems & Solutions's Obligations

4.3.1 In support of this Agreement, the Service Provider shall;

- ~~a→~~ 4.3.1.1 Meet response times associated with service related incidents.
- ~~b→~~ 4.3.1.2 Appropriate notification to Mwalimu National for all scheduled maintenance.

Formatted: Indent: Left: 1.25", No bullets or numbering

4.4. Service Assumptions

4.4.1 In the delivery of the services by TrimLine Systems & Solutions, the presumptions relating to in-scope services and/or components shall include:

- ~~a→~~ 4.4.1.1 All changes to atm bridge and go-mobile banking integration shall be clearly documented and shared with TrimLine Systems & Solutions.

Formatted: Indent: Left: 1", No bullets or numbering

b. 4.4.1.2 Effective support of in-scope services shall result from maintaining consistent service levels which shall be pegged on service availability, monitoring of in-scope services and related components.

4.5. Service Availability

a.4.5.1. Coverage parameters specific to the service(s) covered in this Agreement are as follows:

4.5.1.1. Telephone support: 24 hours 7 days a week.

Calls received out of office hours will be forwarded to a mobile phone and best efforts will be made to answer / action the call, however there will be a backup answer phone service.

4.5.1.2. Email support: 24 hours 7 days a week.

Emails received outside of office hours will be collected, appropriate action will be taken depending on the urgency of support call.

b.4.5.1.3. 4.5.1.3 Onsite assistance guaranteed within 24 hours during the business week

a.4.6. Service Requests

4.6.1. In support of services outlined in this Agreement, the Service Provider will respond to service related incidents and/or requests submitted by the Mwalimu National within the following time frames:

4.6.1.1. 0-6 hours (during business hours) for issues classified as High priority.

4.6.1.2. Within 36 hours for issues classified as Medium priority.

b.4.6.1.3. Within 10 working days for issues classified as Low priority.

4.5.2.4.6.2. However, Remote assistance shall be provided in line with the above timescales dependent on the priority of the support request.

5. Payments

5.1 Support fees and Annual cost

Payment for the services offered by TrimLine Systems & Solutions shall be done in accordance with the tabulation below;

Item	Cost In KES
Support Fees Per Year	Kshs 850,000.00
16% VAT	Kshs 136,000.00
Total Support Cost Per year	Kshs 986,000.00

5.2 Payment Terms and Conditions

Payment Terms:	50% every half yearly in advance
Currency:	Payment to be made in Kenya Shillings
Validity:	This quote is Valid for 30 Days
Out of Scope:	Items/Activities not explicitly listed in this document are deemed out of scope and will be charged separately

Formatted: Heading 2, Left, Outline numbered + Level: 3 + Numbering Style: 1, 2, 3, ... + Start at: 1 + Alignment: Left + Aligned at: 0.5" + Tab after: 0.85" + Indent at: 0.85"

Commented [BAK2]: Considering the services are accessible is 24 hours, why cant this also be 24hours?

Commented [BAK3]: The same comment above applies

Formatted: Heading 2, Left, Outline numbered + Level: 4 + Numbering Style: 1, 2, 3, ... + Start at: 1 + Alignment: Left + Aligned at: 0.75" + Tab after: 1.2" + Indent at: 1.2"

Formatted: Heading 2, Left, No bullets or numbering

Formatted: Heading 2, Outline numbered + Level: 3 + Numbering Style: 1, 2, 3, ... + Start at: 1 + Alignment: Left + Aligned at: 0.5" + Tab after: 0.85" + Indent at: 0.85"

Commented [BAK4]: A guiding definition of high medium and low needs to be provided and the person who is supposed to assess which category it falls within. SAMMY PLEASE ASSIST IN PROVIDING THE GUIDE

Formatted: Heading 2, Outline numbered + Level: 4 + Numbering Style: 1, 2, 3, ... + Start at: 1 + Alignment: Left + Aligned at: 0.75" + Tab after: 1.2" + Indent at: 1.2"

6 DISPUTE RESOLUTION

Any dispute arising out of or in connection with this Agreement shall be referred to arbitration by a single arbitrator to be appointed by agreement between the parties or in default of such agreement within 14 days of the notification of a dispute, upon the application of either party, by the Chairman for the time being of the Kenya Branch of the Chartered Institute of Arbitrators of the United Kingdom. Such arbitration shall be conducted in Nairobi in accordance with the Rules of Arbitration of the said Institute and subject to and in accordance with the provisions of the Arbitration Act 1995. To the extent permissible by law, the determination of the Arbitrator shall be final conclusive and binding upon the parties. Pending final settlement or determination of a dispute, the parties shall continue to perform their subsisting obligations hereunder. Nothing in this Agreement shall prevent or delay a party seeking urgent injunctive or interlocutory relief in a court of competent jurisdiction.

7 TERMINATION

7.1 This Agreement shall terminate after expiry of the Term. Either party may however at any time terminate this Agreement immediately upon 30 days' notice to the other party in the event of the occurrence of any of the following events

7.1.1 either party commits a breach of any provision of this Agreement that is not remediable or, if remediable, is not remedied within thirty (30) days after either party has given notice to the other party requiring such breach to be remedied; or

7.1.2 if the service levels fall below the service requirements in clause 4.6 in three consecutive occasions and Trimline does not remedy this despite provision of 14 days' notice to remedy the same.

7.1.3 if either party ceases to carry on that part of its business relating to the provision and use of the Services or a substantial part thereof or disposes of all or part of its assets; or

7.1.4 in case of a force majeure event. Force Majeure refers to namely circumstances beyond the control of either party which shall include, acts of God, fire, flood, civil commotion, acts of local government or parliamentary authority, breakdown of power supplies and of communications lines; or

7.2 Either Party may, in its absolute discretion, at any time terminate this Agreement upon giving not less than three (3) months prior written notice to the other.

8 CONSEQUENCES OF TERMINATION

8.1 In the event of expiration, cancellation, completion or termination of this Agreement:

8.1.1 Each Party shall pay forthwith any monies, claims or advances due up to and including the date of termination in accordance with this Agreement; and

8.1.2 Trimline shall render reasonable assistance to the Sacco and its Affiliated Companies, if requested, (the pre-agreed costs of which (if any) shall, be reimbursed by Trimline, to the extent necessary to effect an orderly resumption by the Sacco of services to its Customers.

8.2 Termination in accordance with the Agreement shall not prejudice or affect any right or action or remedy which has accrued or shall thereafter accrue to either Party.

9 INDEMNITY

Trimline acknowledges that it is wholly responsible and liable for all actions or omissions of its agents/servants concerning the contract herein and Trimline hereby indemnifies the Sacco against all and any losses liabilities, damages, costs and expenses and will defend, indemnify and hold the Sacco harmless from and against claims by third parties (including the Sacco's customers) arising from or attributable to the actions or omissions of Trimline.

10 CONFIDENTIAL INFORMATION

It is hereby expressly declared that all customer Confidential Information shall be the property of the Sacco and Trimline shall not divulge or allow to be divulged, at any time during the course of or following termination of this Agreement, any customer confidential information or Sacco confidential information that comes to its knowledge in execution of this contract without the consent of the Sacco.

11 RELATIONSHIP

11.1 This Agreement does not constitute an employment contract. Both parties shall retain their sole and absolute discretion in the manner and means of carrying out their activities and responsibilities under this Agreement.

11.2 This Agreement shall not be considered or construed to be a partnership or joint venture and the Sacco shall not be liable for any obligations incurred by Trimline unless specifically authorised in writing.

12 NOTICES

12.1 Any notice to be given hereunder by any party to the other may be affected either by personal delivery in writing or by mail, registered or certified, postage pre-paid with return receipt requested.

12.2 Mailed notices shall be addressed to the parties at the addresses appearing in the introductory paragraphs of this Agreement, but each party may change their address by written notice in accordance with this paragraph.

12.3 Notices delivered personally shall be deemed communicated as of actual receipt; mailed notices shall be deemed communicated as of seven (7) days after mailing.

13 ENTIRE AGREEMENT

This Agreement contains the entire understanding of the parties and shall not be altered, waived, modified or amended except in writing signed by the parties hereto.

14 GOVERNING LAW

The Agreement shall be governed by the laws of Kenya and the parties submit to the exclusive jurisdiction of Kenya courts.

IN WITNESS WHEREOF, the Parties have executed this Agreement on the effective date hereinabove written.

Signed and Sealed for and on behalf of)
TrimLine Systems & Solutions by)
Signature: _____)
Name: _____)
Designation: Director/Technical)
Signature: _____)
Name: _____)
Designation: Director/Functional _____)

Signed for and on behalf of)
Mwalimu National Savings And Credit Cooperative)
Society Limited by)
Signature: _____)
Name: _____)
Designation: Chief Executive Officer)
Signature: _____)
Name: _____)
Designation: Director/ National Chairman)
Signature: _____)
Name: _____)
Designation: Director/ National Secretary)
Signature: _____)
Name: _____)
Designation: Director/ National Treasurer)